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Tennessee Expunction Agent Training Reference

A complete operational knowledge base for clearing criminal records in Tennessee: free non-conviction expunction, the pretrial and judicial diversion pathways, eligible-conviction expunction, and the two-offense expansion — eligibility, waiting periods, excluded offenses, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Tennessee (the court where the case originated; TBI maintains the criminal history)
Primary statutes	T.C.A. § 40-32-101 (expunction); diversion §§ 40-15-105 (pretrial) and 40-35-313 (judicial)
2025 reorganization	§ 40-32-101 reorganized into §§ 40-32-106 (non-conviction), 40-32-107 (conviction), 40-32-108
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, after the 2025 statutory reorganization

VERIFY BEFORE RELYING

Tennessee uses “expunction” (its term for expungement), and the relief is genuine — records are removed and destroyed, restoring the person in the eyes of the law to their pre-arrest status. But two cautions are critical. First, expunction is NOT automatic — even a dismissed charge or a completed diversion stays on background checks until the person files a petition. Second, the 2025 reorganization renumbered § 40-32-101 into §§ 40-32-106 (non-conviction), 40-32-107 (conviction), and 40-32-108; court forms and clerks may still use either citation. The agent must confirm the current statutory citation with the county clerk or DA, and must never tell a user a dismissal cleared itself.

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How the agent should use this document

Tennessee has several pathways and the agent routes by how the case ended. (1) **Non-conviction expunction** (§ 40-32-101(a), now § 40-32-106) is FREE for charges that were dismissed, nolle prossed, returned a no-true-bill, ended in acquittal, or where the person was arrested and released without charge. (2) **Diversion expunction** follows successful completion of pretrial diversion (§ 40-15-105) or judicial diversion (§ 40-35-313) — but a petition is still required. (3) **Eligible-conviction expunction** (§ 40-32-101(g), now § 40-32-107) clears certain non-violent misdemeanors and Class E felonies after a waiting period and a \$100 fee. (4) The **two-offense pathway** (§ 40-32-101(k)) lets a person clear up to two eligible offenses once in a lifetime. The agent should (1) determine conviction vs. non-conviction vs. diversion; (2) for convictions check the eligible-offense list and waiting period; (3) confirm the person has no other convictions; and (4) remember a petition is always required.

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Statutory shorthand used throughout

T.C.A. § 40-32-101(a)	Free EXPUNCTION of non-conviction records (now also § 40-32-106)
§ 40-32-101(g)	Eligible-CONVICTION expunction — misdemeanors & Class E felonies (now § 40-32-107)
§ 40-32-101(k)	TWO-OFFENSE pathway — up to two eligible offenses, once in a lifetime
§ 40-32-102	TBI request-for-certification process before an expunction order is entered
§ 40-15-105	PRETRIAL diversion — prosecution suspended by MOU; no guilty plea
§ 40-35-313	JUDICIAL diversion — conditional guilty plea, no judgment of conviction entered
2025 reorg.	§ 40-32-101 split into §§ 40-32-106 / 40-32-107 / 40-32-108
TBI	Tennessee Bureau of Investigation — maintains the state criminal history

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1. Eligibility rules

Four pathways, considered by how the case ended.

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Pathway 1 — Non-conviction expunction, free (§ 40-32-101(a) / § 40-32-106)

Available at NO cost where the case did not result in a conviction:

- Charge **dismissed** (for a reason other than successful diversion completion).
- **Nolle prosequi** (prosecutor declined to proceed).
- Grand jury returned a **no true bill** (no indictment).
- **Not guilty** verdict, by judge or jury, on all counts.
- Person was **arrested and released without being charged**.

On a not-guilty verdict on all counts, the judge must ask the acquitted person whether they want the records destroyed; if yes, the court orders it immediately with no separate petition. For dismissals and nolle prosequi after the fact, the person files a petition (no fee).

Pathway 2 — Diversion expunction (§ 40-15-105 pretrial / § 40-35-313 judicial)

Two distinct diversion programs, both ending in expunction after successful completion — but a petition is still required. **Pretrial diversion** suspends prosecution under a Memorandum of Understanding with the DA; the person does not plead or get found guilty, and on completion asks the court to send an Order of Expungement to the TBI (marked Suspension of Prosecution). **Judicial diversion** involves a conditional guilty plea with NO judgment of conviction entered; the court defers adjudication and places the person on probation (typically 6–18 months), and on successful completion discharges and dismisses the case, after which the person petitions to expunge. A completed judicial diversion is not a conviction under Tennessee law.

Pathway 3 — Eligible-conviction expunction (§ 40-32-101(g) / § 40-32-107)

Since 2012 (and expanded repeatedly), Tennessee allows expunction of certain non-violent, non-DUI, non-sexual convictions — most misdemeanors and a defined set of Class E felonies — after the person has completed the entire sentence and the waiting period has run. If the eligibility requirements are met, there is a **rebuttable presumption that the petition should be granted**. A \$100 filing fee applies (now discretionary with the clerk).

Pathway 4 — Two-offense expunction (§ 40-32-101(k))

Since 2017, an “eligible petitioner” may expunge up to TWO offenses — either two misdemeanors, or one felony and one misdemeanor — in a single lifetime use, provided each offense is independently eligible under (g) and each occurred before any conviction for an ineligible offense. The 2025 reorganization (§ 40-32-107) broadened this for offenses arising from the same incident or closely related charges. A person may use this two-offense option only once.

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AGENT GUIDANCE

Route by outcome. Non-conviction → free expunction (sometimes immediate at acquittal). Completed diversion → petition to expunge (pretrial vs. judicial differ in mechanics). Eligible conviction → (g)/107 expunction after the wait; two eligible offenses → the once-in-a-lifetime (k) pathway.

Always tell users expunction is NOT automatic — a dismissal or completed diversion stays on background checks until they file. This is the most common Tennessee misunderstanding.

2. Waiting periods

Conviction expunction requires completion of the ENTIRE sentence first — imprisonment, probation, parole, fines, restitution, and court costs — then the waiting period runs from that completion. Non-conviction and diversion expunctions have no level-based waiting period.

Pathway / matter	Waiting period	Runs from	Fee
Non-conviction (dismissed, nolle, no true bill, acquittal)	None	—	Free
Pretrial / judicial diversion	None (after completion)	Discharge & dismissal	Clerk fee
Misdemeanor conviction	5 years	Sentence completion	\$100
Eligible Class E felony	5 years	Sentence completion	\$100
Eligible Class C or D felony	10 years	Sentence completion	\$100
Two-offense (k) — two misd. or Class E + misd.	5 years	Most recent completion	\$100
Two-offense (k) — includes a Class C or D felony	10 years	Most recent completion	\$100

Two threshold facts the agent must check. First, the conviction must have occurred **on or after November 1, 1989** to be expungeable under the conviction pathway. Second, at the time of filing the person must have **no other conviction of any kind** — including federal offenses and out-of-state offenses that would be ineligible in Tennessee — except the offense(s) being expunged. Outstanding fines, restitution, or court costs mean the sentence is not complete and the clock has not started.

AGENT GUIDANCE

Compute from completion of the ENTIRE sentence, including unpaid fines/restitution/costs — those stop the clock from starting. Misdemeanor and Class E = 5 years; Class C/D = 10 years.

Confirm the person has no other convictions anywhere; a single ineligible conviction elsewhere generally defeats conviction expunction. Verify the offense post-dates Nov 1, 1989.

3. Disqualifying / ineligible offenses

The conviction pathway is limited to non-violent, non-DUI, non-sexual offenses. The following are categorically NOT eligible for conviction expunction, regardless of time elapsed:

- **DUI** convictions (T.C.A. § 55-10-401) and related serious traffic offenses.
- **Sexual offenses** and any offense requiring sex-offender registration.
- **Class A and Class B felonies** (the most serious felony classes).
- **Violent offenses** and crimes against the person enumerated in the statute.
- **Vehicular assault / vehicular homicide** and similar.
- **Domestic violence assault** convictions and certain offenses against children.
- Offenses committed by a **public official in an official capacity**.

Eligible Class E felonies (illustrative)

Among the Class E felonies that ARE eligible: theft (§ 39-14-103), forgery (§ 39-14-114), fraudulent use of a credit card (§ 39-14-118), vandalism, fraudulent/false insurance claims, and certain drug-possession offenses (Schedule III/IV/V, or small amounts — under 0.5 grams — of Schedule II). The Legislature has added offenses to the eligible list repeatedly (e.g., the 2021 expansion adding dozens of offenses), so the list grows over time.

Other categorical limits

- **Any other conviction** on the record (in-state, federal, or out-of-state and ineligible here) generally bars conviction expunction.
- **Prior expunction.** The two-offense (k) pathway may be used only once in a lifetime.
- **Diversion eligibility differs.** Judicial diversion is barred for Class A/B felonies, sexual offenses, DUI, vehicular assault, and where the person has a prior felony or a prior Class A misdemeanor with jail time, or any prior diversion.

VERIFY BEFORE RELYING

The eligible Class E felony list is defined by enumerated Code sections and has been expanded by the Legislature almost yearly; the 2025 reorganization also moved the conviction provisions to § 40-32-107. The agent must map the user's exact offense to its T.C.A. section and check it against the current eligible/ineligible lists (the Nashville DA and TBI publish checklists) before declaring eligibility — the offense label and class alone are not enough.

AGENT GUIDANCE

DUI and sexual offenses are the two hard, permanent bars users most often misjudge — neither is ever expungeable. Class A/B felonies are out; only specific Class E (and the lower misdemeanors) qualify. Because the eligible list keeps expanding, check the current Nashville DA / TBI checklist rather than assuming a borderline Class E felony is in or out.

4. Case outcome rules

Outcome drives the pathway, the cost, and whether a petition (vs. an immediate order) is needed. This table is the agent's primary routing logic for Tennessee.

Case outcome	Pathway	Route	Cost / wait
Not guilty on all counts	§ 40-32-101(a)	Judge asks; immediate order	Free / none
Dismissed / nolle / no true bill	§ 40-32-101(a)	Petition (free)	Free / none
Arrested, never charged	§ 40-32-101(a)	Petition (free)	Free / none
Pretrial diversion completed	§ 40-15-105	Petition; order to TBI	Clerk fee / none
Judicial diversion completed	§ 40-35-313	Petition after dismissal	Clerk fee / none
Misdemeanor / Class E felony conviction	§ (g) / 107	Petition	\$100 / 5 yrs
Class C or D felony (eligible)	§ (g) / 107	Petition	\$100 / 10 yrs
Two eligible offenses	§ (k)	Petition (once in lifetime)	\$100 / 5–10 yrs
DUI / sexual / Class A-B / violent	—	Not eligible	—

Effect of relief: a Tennessee expunction removes and destroys the public records of the case, and the person is restored in the eyes of the law to the status they held before the arrest — they may lawfully deny the arrest and charge in most contexts. Note the limits: federal systems and security-clearance background checks may still see an underlying guilty plea (e.g., from a diversion), and the relief reaches Tennessee records only. If the petition is denied, the person may reapply after two years.

AGENT GUIDANCE

Tennessee expunction is real erasure of the state record — stronger than the 'sealing' of many states — but it does not reach federal records or undo a guilty plea visible to federal clearance checks. Set that expectation for diversion cases especially.

If a petition is denied, advise the user they can reapply after two years.

5. Required forms

Tennessee expunction is filed in the court where the case originated. The TBI and the Administrative Office of the Courts publish forms; the TBI also runs a request-for-certification step. A petition is required for every pathway except the immediate at-acquittal order.

Core components of an expunction filing

- 1 Petition / Order of Expungement** — names the petitioner, date of birth, social security number, the offense to be expunged, the state control number (per § 8-4-115), the date and cause of the dismissal or the conviction details, and the statutory basis. A TBI PDF-fillable form is available.
- 2 TBI request-for-certification (§ 40-32-102)** — for conviction and diversion expunctions, the court completes and submits a certification form to the TBI before entering the order; the TBI provides the certificate to the clerk. (Not required for some non-conviction expunctions under §§ 40-32-106 / 109 unless the case came through diversion.)
- 3 Diversion marking** — pretrial diversion orders are marked “Suspension of Prosecution § 40-15-105”; judicial diversion orders reference § 40-35-313.
- 4 Proof of sentence completion** — for conviction expunctions, documentation that all terms (including fines, restitution, and costs) are satisfied and the waiting period has run.

AGENT GUIDANCE

Use the TBI PDF-fillable expungement order where available; electronic signatures are accepted via the TBI FlexCheck process. For conviction/diversion cases, remember the court's § 40-32-102 certification step precedes entry of the order.

Capture the state control number and the exact disposition early — the order cannot be completed without them.

6. Filing instructions

- 1 Get the record.** Obtain a TBI criminal history and the court disposition to confirm the outcome, the statutory basis, sentence completion, and the state control number.
- 2 Confirm the pathway and eligibility.** Non-conviction vs. diversion vs. conviction; the eligible-offense lists; the waiting period from full sentence completion; the no-other-conviction requirement; and the Nov 1, 1989 date for conviction expunction.
- 3 Prepare the petition / order of expungement** (TBI fillable form) with the petitioner's identifiers, the offense, the disposition, and the statutory citation (confirm 40-32-101 vs. the reorganized 40-32-106/107 with the clerk).
- 4 File in the court where the case originated** — the county criminal/circuit/general sessions court clerk — and pay the fee (\$100 for conviction expunction, discretionary with the clerk and payable in installments; free for non-conviction).
- 5 DA review.** The District Attorney may challenge the petition; for eligible convictions there is a rebuttable presumption in favor of granting. The judge may hold a hearing if contested.
- 6 Court certification to TBI.** For conviction/diversion cases, the court submits the § 40-32-102 certification to the TBI and, once granted, must forward the expunction order to the TBI within **thirty (30) days**.
- 7 Destruction of records.** On the granted order, the clerk and the TBI remove and destroy the public records of the case. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the originating court's county — a person with cases in several counties files separately in each. Confirm the right clerk (criminal, circuit, or general sessions) for the case. Lean on the rebuttable presumption for eligible convictions: a complete, well-documented petition with proof of sentence completion is presumptively granted.

7. Court-specific quirks

- **The 2025 reorganization.** § 40-32-101 was split into §§ 40-32-106 (non-conviction), 40-32-107 (conviction), and 40-32-108; the substance carried forward but citations changed — confirm with the clerk or DA which the county uses.
- **Not automatic.** Unlike Clean Slate states, Tennessee has no automatic sealing; every clearance requires a filed petition (except the immediate order at a not-guilty verdict).
- **Immediate order at acquittal.** On a not-guilty verdict on all counts, the judge must ask the person if they want records destroyed and can order it on the spot — no petition.
- **Rebuttable presumption to grant.** For eligible convictions, § (g)(5)(B) creates a presumption the petition should be granted, shifting the practical burden to the DA to object.
- **One-time two-offense use.** The (k) pathway is a once-in-a-lifetime option; using it forecloses a later second use.
- **Fee history.** The old \$180 expunction fee was eliminated in 2019; the current conviction fee is \$100, made discretionary with the clerk in 2021 and payable in installments — non-conviction expunction is always free.
- **Diversion is not erasure by itself.** Completing pretrial or judicial diversion dismisses the case but leaves it visible until a separate expunction petition is filed.
- **TBI 30-day rule.** The court must forward a granted expunction order to the TBI within 30 days.

AGENT GUIDANCE

Confirm the statutory citation with the county before drafting — the 2025 renumbering means forms may show 40-32-101 or 40-32-106/107.

For diversion users, stress the separate expunction petition: completing diversion is not the same as clearing the record.

8. Fee information

Item	Amount	Note
Non-conviction expunction	\$0	Statute bars any fee (dismissed, nolle, no true bill, acquittal)
Conviction expunction (§ g / 107)	\$100	Discretionary with clerk since 2021; installments allowed
Two-offense expunction (§ k)	\$100	Single filing for up to two offenses
Diversion expunction	Clerk fee	Pretrial / judicial diversion completion
TBI criminal history (background check)	TBI fee	To confirm record before filing
Attorney fees (if represented)	Varies	Not required; legal-aid and DA expungement clinics exist

The cost picture is favorable. Non-conviction expunction is free by statute. The conviction-expunction fee dropped from \$180 to \$100 in 2019, became discretionary with the court clerk in 2021, and may be paid in installments — so a person who cannot pay up front can still proceed. The realistic out-of-pocket cost beyond the filing fee is the TBI background-check fee used to confirm the record. Expungement clinics run by some District Attorneys (e.g., Nashville) assist for free.

AGENT GUIDANCE

Lead with the free non-conviction route and the installment option for the \$100 conviction fee; cost is rarely a hard barrier in Tennessee. Point users to DA expungement clinics where available.

Budget the TBI background-check fee as the baseline expense for confirming the record before filing.

9. Criminal history (TBI) request process

Reviewing the record first confirms the disposition, the state control number, and sentence completion, and reveals any other conviction that would bar conviction expunction.

A. Statewide history — Tennessee Bureau of Investigation (TBI)

- The TBI maintains the Tennessee computerized criminal history; a person can obtain a background check / criminal history for a fee.
- The TBI also administers the expunction certification process (§ 40-32-102) and the expunged-offender and diversion databases, and receives the granted expunction order.

B. Court records — originating county court clerk

- The clerk of the court where the case originated holds the disposition and the case file needed to complete the petition and confirm sentence completion.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Tennessee, the FBI fingerprint-based Identity History Summary is the federal equivalent; Tennessee expunction reaches Tennessee records only and does not bind federal systems.

VERIFY BEFORE RELYING

TBI background-check methods and fees can change, and the expunction certification workflow was amended (effective dates noted in TBI guidance). The agent should verify the current TBI request process and fee at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame the TBI background check as step one — it confirms the disposition and the all-important 'no other conviction' requirement for conviction expunction, and supplies the state control number the order needs. Direct users to the TBI for the history and the originating county clerk for the case file.

10. Sample petitions and completed examples

Tennessee expunction is filed on a petition/order in the originating court. The examples below show structure and key recitals for the main pathways. Names, dates, and identifiers are fictional and illustrative.

Example A — Petition / Order of Expunction, eligible conviction (§ 40-32-101(g) / 107)

IN THE CRIMINAL COURT FOR DAVIDSON COUNTY, TENNESSEE

STATE OF TENNESSEE v. ANDRE L. CARTER Case No. 2018-A-1234

PETITION FOR EXPUNCTION (T.C.A. 40-32-101(g) / 40-32-107)

1. Petitioner: Andre L. Carter; DOB 07/22/1992; SSN XXX-XX-4471; State Control No. TN01234567.
2. Offense: Theft of property (Class E felony), T.C.A. 39-14-103, convicted 03/14/2019; the offense occurred after 11/01/1989.
3. Petitioner completed the entire sentence -- probation, fines, restitution, and court costs -- on 03/14/2020.
4. More than five (5) years have elapsed since completion.
5. The offense is an ELIGIBLE Class E felony and is not a DUI, sexual, violent, or Class A/B felony offense.
6. Petitioner has no other conviction of any kind, in Tennessee, federally, or in any other state.
7. Under 40-32-101(g)(5)(B) there is a rebuttable presumption the petition should be granted. Fee: \$100 (installments requested).

WHEREFORE Petitioner requests an Order of Expunction directing the Clerk and the TBI to remove and destroy all records of this case. (Court completes the 40-32-102 TBI certification before entry; the order is forwarded to the TBI within 30 days.)

Examples B, C & D — Other pathways

B. NON-CONVICTION EXPUNCTION (40-32-101(a) / 40-32-106) – FREE:

A charge dismissed / nolle prossed / no-true-billed, or an acquittal, is expunged at no cost. On a not-guilty verdict on all counts, the judge asks the person and may order destruction IMMEDIATELY -- no petition. For a later dismissal, file the free petition.

C. JUDICIAL DIVERSION (40-35-313):

Conditional guilty plea, no judgment of conviction entered; on completing probation the case is dismissed. The person then PETITIONS to expunge (a clerk fee applies). Completed judicial diversion is not a conviction under Tennessee law.

D. TWO-OFFENSE PATHWAY (40-32-101(k)) – ONCE PER LIFETIME:

Up to two eligible offenses (two misdemeanors, or one felony + one misdemeanor), each eligible under (g) and each occurring before any ineligible conviction. 5-year wait (or 10 if a Class C/D felony is included).

Order of Expunction

The petition is accompanied by an Order of Expunction reciting the petitioner's identifiers and the offense and directing the clerk of court and the Tennessee Bureau of Investigation to remove and destroy all public records of the case. For conviction and diversion expunctions, the court first completes the § 40-32-102 TBI certification and, once granted, forwards the order to the TBI within thirty days.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Tennessee statutes and common practice and is not legal advice. Tennessee reorganized its expunction statute in 2025 (§ 40-32-101 into §§ 40-32-106/107/108) and the eligible-offense list has expanded repeatedly; the agent must verify the current statutory citations, the eligible/ineligible offense lists, the TBI certification and request processes, county filing specifics, and current fees before relying on any rule here.